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NATIONAL EDUCATIONAL ASSESSMENT AND EXAMINATIONS AGENCY
(NEAEA)
NATIONAL EXIT EXAMINATION FOR LL.B PROGRAM STUDENTS OF
ETHIOPIAN LAW SCHOOLS
ACADEMIC YEAR 2020/21

04 August, 2021
Time Allowed: 3:00 Hours

PART II: PUBLIC LAWS

INSTRUCTIONS:

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
 2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE:
 - a. THE UN CHARTER,
 - b. THE FDRE CONSTITUTION,
 - c. THE CRIMINAL CODE,
 - d. THE INCOME TAX PROCLAMATIONS,
 - e. THE VAT PROCLAMATION, AND
 - f. THE EIA PROCLAMATION.
 3. WHENEVER APPROPRIATE, BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS.
 4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
 5. WRITE LEGIBLY.
 6. DO NOT BRING YOUR MOBILE PHONE INTO THE EXAM HALL.
- DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.**

SECTION I: MULTIPLE CHOICES (30 MARKS)

CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.

1. According to the Ethiopian Constitution, states have exclusive power to:
- A. enact criminal law.
 - B. appoint their presidents.
 - C. protect the federal constitution.
 - D. regulate their trade with other states.
 - E. formulate economic policies.

Which one of the following is **NOT** a feature of consociational democracy?

- A. Proportional representation of groups in key public positions.
- B. Executive power sharing.
- C. Election by plurality of votes.
- D. Cultural autonomy.
- E. mutual veto power.

Which one is true about constitutional review models?

- A. Abstract review arises in relation to court cases between antagonistic parties.
- B. Countries with diffused review model use a constitutional court system.
- C. Courts can nullify legislative acts in decentralized review systems.
- D. Most European countries adopted the decentralized review model.
- E. In the decentralized model, courts lack the power to invalidate the laws of parliament.

Which one of the following statements best describes a federal system?

- A. It advocates a multi-tiered government system combining elements of shared rule and self-rule.
- B. It constitutes the institutional and structural techniques for achieving one of the goals of federalism.
- C. There could be a federal system without some matching variety of federalism.
- D. It is a normative principle that perpetuates both union and non-centralization.
- E. It represents a multi-tiered government wherein constituent units are subordinate to the center.

5. Cooperative federalism is criticized by many because
- A. it does not give equal prerogative to all member states of the federation.
 - B. it gives each level of government power to control its respective executive organ.
 - C. it results in the establishment of a unitary system in the end.
 - D. it results in a democratic deficit by blurring accountability.
 - E. it affects the federal process since it makes the center stronger than the states.
6. Which statement justifies why the responsibility to interpret the constitution is given to the House of the Federation in Ethiopia?
- A. This is a common practice in other federations, too.
 - B. This is a complementary power since the House lacks law-making power,
 - C. It is associated with the federal formation that Ethiopia follows.
 - D. The nature of the constitution in general and the roles of the nation, nationality and people in particular.
 - E. To ensure the supremacy of the House over other federal government institutions.
7. Which statement justifies why constitutional interpretation is given to the House of the Federation in Ethiopia?
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Which of the following comes first in the realization of the object and purpose of criminal law?

- A. Providing for punishment of criminals
- B. Giving due notice of the crimes and penalties prescribed by law
- C. Imposing swift and proportional punishment against offenders
- D. Making prisons rehabilitative institutions
- E. Suspending execution of penalties

9. Which of the following is a type of deterrence based on the idea that the individual offender will be discouraged from criminality by experiencing criminal punishment?
- A. Incapacitation
 - B. General deterrence
 - C. Rehabilitation
 - D. Specific deterrence
 - E. Restoration
10. Which one of the following best describes a Dolus Eventualis (indirect intention) state of mind?
- A. If the offender knows the circumstances of his act and desires to bring the harm, then his state of mind is indirect intention.
 - B. The offender is in dolus eventualis state of mind when he knows his act could cause harm and he does not want such consequence to follow.
 - C. In dolus eventualis, since the criminal does not desire, he does not accept the occurrence of possible harm as a result of his own act.
 - D. The offender is in dolus eventualis state of mind when he has a fixed objective of bringing the harm done, a clear foresight of the consequence and desires the result.
 - E. The offender is in dolus eventualis state of mind if he is certain that harm will ensue but he proceeds with his action, anyway.
1. Identify the correct statement.
- A. Criminalizing a behavior by interpreting criminal law is not prohibited under FDRE criminal code.
 - B. Punishing an offender by more than one type of punishment is an example of double jeopardy.
 - C. Criminal law prohibits its retroactive application in all situations.
 - D. Retroactive application of criminal law is possible if a new law benefits the offender.
 - E. Determining the retroactive application of criminal law is within the discretion of courts.

12. Which of the following is true pursuant to the Ethiopian Criminal Code?
- A. Responsibility is not presumed.
 - B. The court cannot, on its own motion, call experts in order to ascertain criminal irresponsibility even when circumstances so justify.
 - C. Loss of volition or cognition due to mental disease can lead to criminal irresponsibility.
 - D. Loss of volition or cognition due to mental disease cannot lead to criminal irresponsibility.
 - E. Issues of loss of cognitive and volitional powers are not treated in the Criminal Code.
13. Which one of the following penalties does not apply to young offenders?
- A. Fine
 - B. Imprisonment
 - C. Death penalty
 - D. Home arrest
 - E. Detention
14. Which of the following characterizes the early period in the development of international environmental law?
- A. Environmental issues were addressed primarily through bilateral agreements and the laws and regulations adopted by each State at national level.
 - B. Widespread global environmental problems and strong cooperation among States to address the problems.
 - C. Known for multilateral treaties that focused on global environmental issues and protection of the environment as an international concern.
 - D. High level of awareness and scientific knowledge about environmental problems and damage that informed the adoption of global environmental treaties.
 - E. Well-established environmental activism and advocacy that convinced the world to adopt several global environmental treaties.

Which of the following is a pair of closely interrelated principles of environmental law?

- A. "No Harm" and "Polluter Pays".
- B. "Sustainable Development" and "Precautionary Approach".
- C. "Integration" and "Environmental Impact Assessment".
- D. "Common but Differentiated Responsibility" and "Common Heritage of Humankind".
- E. "No Harm" and "Common Heritage of Humankind".

Which of the following legal remedies best serves the purpose advanced by the "Prevention" principle of environmental law?

- A. Injunction
- B. Restitution
- C. Abatement
- D. Compensation for damage
- E. Criminal punishment

Which of the following provides "*Public Participation*" as one of its core components and allows direct participation by the public in decision-making?

- A. Environmental Impact Assessment
- B. Polluter Pays Principle
- C. Precautionary Approach
- D. Public Interest Litigation
- E. Common but Differentiated Responsibility

Which one of the following is **NOT** true regarding treaty invalidation?

- A. A treaty can be invalidated if it is made under intimidation or threat.
- B. A treaty can be invalidated if it is manifestly ultra-virus.
- C. A treaty can be invalidated if it is impossible to perform.
- D. A treaty can be invalidated if there is a fundamental mistake about the object thereof.
- E. A treaty can be invalidated if there is a fundamental change of circumstances.

19. One of the following is true about the formation of International Organizations.
- A. They are established only by states members of the international community.
 - B. After their establishment, international organizations seek the consent of member states to perform their designated duties.
 - C. International organizations are established on the basis of treaties which can be their constitutive documents.
 - D. The establishment documents of international organizations can be governed by domestic legislation.
 - E. Most international organizations are established with more powers than the states that have established them.
20. Which one of the following is true about International Court of justice (ICJ)?
- A. ICJ has jurisdiction of entertaining all cases presented by member states of UN.
 - B. ICJ can automatically assume jurisdiction devoid of the consent of disputing states.
 - C. ICJ can give advisory opinion if requested by organs of United Nations provided that the issue is under their competence.
 - D. ICJ can entertain cases presented from non- members of the United Nations automatically.
 - E. ICJ can entertain cases presented from all international organizations.
21. One of the following is **NOT** the constitutive elements of statehood.
- A. Permanent population
 - B. A more or less defined territory
 - C. Sovereignty
 - D. A government having a control over the people and the territory
 - E. Capacity to enter into international arrangements
22. Which statement is correct?
- A. Tax laws have retroactive application.
 - B. Ethiopia has income tax jurisdiction only on its resident.
 - C. Gross income is the amount of income on which actual income is charged, levied and collected after all deductions have been made.
 - D. Tax may affect the property rights of individuals.
 - E. Efficient tax system may result in government budget deficit.

23. Income tax is payable on
- A. Earned income.
 - B. Every income.
 - C. Taxable income.
 - D. Aggregate income.
 - E. Selected income.
24. The following are objectives of taxation by the Government **EXCEPT**
- A. raising revenue for the state.
 - B. maintaining economic stability.
 - C. reducing inequalities in income and wealth.
 - D. ensuring price stability.
 - E. stepping up public investments only.
25. Which of the following is **NOT** correct about Value Added Tax (VAT)?
- A. VAT is a multi-stage tax.
 - B. VAT is paid on the total value of the goods and services.
 - C. There is no cascading effect of tax in VAT.
 - D. VAT is not defined under the VAT proclamation.
 - E. VAT is a form of indirect taxation.
26. A good tax system is efficient when
- A. there is flexibility and certainty in the tax system.
 - B. it needs lots of money and resource for its operation.
 - C. it changes consumer behavior that they buy less of taxed goods and more of other goods.
 - D. the cost of collecting a tax is greater in relation to the amount collected.
 - E. the tax system need not be simple.
27. Taxpayers who are not voluntarily or obligatorily registered for VAT shall pay
- A. Custom duty tax.
 - B. Income tax.
 - C. Excise tax.
 - D. Turnover tax.
 - E. Stamp duty tax.

28. What was the first human rights instrument adopted by the United Nations?
- A. The Convention on the Rights of the Child
 - B. The International Convention on the Protection of All Migrant Workers and Members of Their Families
 - C. International Convention on the Elimination of All Forms of Racial Discrimination (ICERD)
 - D. Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT)
 - E. Universal Declaration of Human Rights (UDHR)
29. When is Human Rights Day observed each year?
- A. 10th of December each year
 - B. 15th of February each year
 - C. 10th of January each year
 - D. 15th of March each year
 - E. 10th of September each year
30. The enforcement mechanism of the International Covenant on Economic, Social and Cultural Rights (ICESCR) consists of
- A. a reporting mechanism only.
 - B. a reporting mechanism and the right to individual petition.
 - C. a right to individual petition only.
 - D. inter-state complaints only.
 - E. Inquiry procedure only.

SECTION II: MATCHING (10 Marks)

CHOOSE THE BEST MATCH FOR THE ITEMS UNDER "A" FROM THE ITEMS UNDER "B".

A

1. Created by formerly independent states
2. Separation of state and religion
3. Federal exclusive power in most federations
4. Decentralized form of government
5. Blind or passive obedience
6. Negative defense
7. Assimilating official's act with state's act
8. Targeting non-combatants
9. Unearned or unexpected gains
10. Statements to exclude legal effects of a treaty

B

- A. Reservations
- B. windfall profit
- C. Irresponsibility
- D. Coming together federalism
- E. Intelligent Infantry
- F. Secularism
- G. Accession
- H. Lawful acts
- I. Fusion of power
- J. Imputability
- K. Subordinating states to the center
- L. Foreign relations
- M. Employment Income
- N. Terrorism
- O. Superior order

SECTION III: SHORT ANSWER QUESTIONS (10 Marks)
GIVE SHORT ANSWERS TO THE FOLLOWING QUESTIONS.

- 3.1. List the merits of introducing a federal political system in a given polity. (5 Marks)
- 3.2. Mention the difference between 'tax evasion' and 'tax avoidance'. (5 Marks)

SECTION IV: ESSAY PART (20 Marks)
WRITE SHORT ESSAY FOR THE FOLLOWING QUESTIONS.

- 4.1. Write a short essay of **not more than 20 lines** discussing the roles of human rights in development in relation to Ethiopia. In your essay, touch upon the synergy or marriage, if any, between development and human rights in Ethiopia. (10 Marks)
- 4.2. Write an essay of not more than **20 lines** explaining how the rights to "*Access to Information*" and "*Public Participation*" are interdependent environmental rights. (10 Marks)

SECTION V: HYPOTHETICAL CASES (30 Marks)
READ THE FOLLOWING CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

5.1. Case One (15 Marks)

Assume that State XY is one of the ten states that make up the Ethiopian federation. Because of the recurring and pervasive ethnic conflicts and the coronavirus outbreak in Ethiopia, State XY's economic growth showed a decline in recent years. In an effort to revive its economy, the State adopted policies and laws with the view to foster intra-state, inter-state and international trade. Consequently, the State signed a bilateral treaty with neighboring Kenya. According to the treaty, the parties agreed to remove all tariffs on the import and export goods between them. However, the treaty contradicted with the relevant federal proclamation causing friction between the federal government and the concerned state authorities. Now, the federal authorities are seeking your advice on how to challenge the constitutionality of the treaty. **What would you advise them to do?**

5.2. Case Two (15 Marks)

Chuchu and Nunu, students at one of Ethiopian Art Schools in Ethiopia, argued with a fellow student, Firtuna, about loud music emanating from her room at night. While waiting to go into a lecture theatre the next day, Chuchu complained to her friend, Yigermal, about Firtuna's behaviour and said that if Yigermal were to drown Firtuna in the nearby lake, it would be a good thing. Yigermal told Chuchu that if Firtuna bothered him as well he would certainly make sure she never did it again. After the lecture, Nunu talked to her friend, Gulbe, whom she knew for sometime, and who enjoys getting into fights. Nunu said to her, 'If you think you're tough, put Firtuna in hospital so she stops disturbing my sleep!'

Late that evening, Yigermal went to Chuchu's room. They agreed that if Firtuna started playing her music loudly again, Yigermal would go and threaten her with a knife that Chuchu had found in the kitchen, using it to stab Firtuna 'if necessary.' Unknown to either of them, the knife was blunt and the blade was of very poor quality. After waiting for several hours without the music starting, Chuchu became angry and said to Yigermal, 'If you don't go and deal with Firtuna right now, I'll report you for cheating in your assessed essays and I'll push you under a bus tomorrow!' Yigermal then left Chuchu's room and knocked on Firtuna's door. When Firtuna opened the door, Yigermal tried to attack her with the knife but slipped over and fell on the floor, missing Firtuna.

The next day, Gulbe went looking for Firtuna. Gulbe's plan was to provoke an argument so as to have a pretext for hitting Firtuna. At lunch time, Gulbe saw Firtuna on the other side of the cafeteria and started walking towards her to carry out her plan, but halfway across the room a lecturer stopped Gulbe to congratulate her for her excellent essay on the psychology of memory. Gulbe then forgot all about Firtuna and went home.

Discuss the criminal liability, if any, of Chuchu, Nunu, Yigermal and Gulbe.

THE END

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AGENCY (NEAEA)
NATIONAL EXIT EXAM FOR LL.B PROGRAMME
STUDENTS OF ETHIOPIAN LAW SCHOOLS
2020/2021 ACADEMIC YEAR

AUGUST 03, 2021
TIME ALLOWED: 3 Hours

PART I: PRIVATE LAWS

INSTRUCTIONS:

1. THIS EXAM HAS FIVE SECTIONS: ATTEMPT EACH SECTION ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. TIME ALLOWED: 3 HOURS.
3. THIS IS A CLOSED BOOK EXAM EXCEPT PERTINENT ETHIOPIAN LAWS.
4. BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS WHENEVER APPROPRIATE.
5. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
6. YOU MAY ASSUME FACTS WHERE NECESSARY.
7. WRITE LEGIBLY.
8. SWITCH OFF YOUR MOBILE PHONE.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.

SECTION I: MULTIPLE CHOICE ITEMS (30MARKS)

CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.

1. Which of the following statements is **WRONG**?
 - A. A creditor is bound to receive part payment of fungible goods.
 - B. Provisions of Contracts in General (Art 1675-2026) could possibly govern personal effects of marriage.
 - C. If a midwife claims payment for professional services after two years of the debt's due date, it suffices for the claimant to prove that the obligation was created.
 - D. When obligation is assigned, the law presumes that the original debtor changes his position from principal debtor to secondary debtor and obligation of those who were secondary debtors would be extinguished.
 - E. Default notice is a precondition to invoke non-performance of a contract.

2. One of the following is different from the others.
 - A. Partnership
 - B. Tax
 - C. Marriage
 - D. Will
 - E. Filiation

3. Identify the **WRONG** statement.
 - A. Reserves and restrictions intended by one party but not known by the other party may be binding if such reserves and restrictions are incidental effects as are attached to the obligations concerned by custom.
 - B. Signature under Ethiopian Contracts Law is defined as either as a handwriting or a stamp or both.
 - C. A court may invoke family relation as a justification to modify a contract.
 - D. A commercial contract may be affected by defect in consent if one of the parties lies to the other and such lie relates to the nature of the obligation which is decisive.
 - E. When a debtor is adjudged bankrupt, his debt becomes due immediately regardless of contractually agreed time of performance.

4. Socialist Model of Contract Law champions all **but one**
- A. labor right protection.
 - B. consumer right protection.
 - C. freedom of contract.
 - D. written form as a validity requirement.
 - E. legally binding standard contract terms.
5. The FDRE Constitution gives constitutional recognition to contract by recognizing
- A. private property and economic rights.
 - B. public ownership of land.
 - C. democratic rights.
 - D. sovereignty of the people.
 - E. parliamentary form of government.
6. Based on the principle of independence of the judiciary recognized under Art 78 of the FDRE Constitution, which of the following doctrine/theory authorizes the court to interpret contract?
- A. Privity Doctrine
 - B. Sanctity Doctrine
 - C. Freedom of Contract Doctrine
 - D. Consent theory
 - E. Bargain theory
7. Which one of the following is true about offer?
- A. Ethiopian Law of Contract generally disregards freedom of form of offer.
 - B. A declaration of intention to buy things by auction is an offer.
 - C. An offer may never contain general terms of business.
 - D. An offer without time limit for acceptance would favor an offeror than an offeree.
 - E. The binding effect of offer expires if the offeror dies.

8. Which of the following is a rebuttable indication of performance of contract?
- A. Entries made by a creditor at the back of document of title.
 - B. Handing over of document of title.
 - C. Receipt for the principal debt.
 - D. Expiry of six months after due date.
 - E. Unqualified entries in trade books against those who made the entries.
9. A court need **NOT** take into account one of the following while interpreting a contract
- A. freedom of Contract.
 - B. trust as a foundation of contract.
 - C. the context and the situation in which the contract was made.
 - D. economic benefits that both parties expect.
 - E. the nationality of the parties to the contract.
10. Contractual performance is possible through a delegate where it relates to
- A. an obligation to provide a legal consultancy service.
 - B. an obligation to deliver a fungible thing.
 - C. an obligation to make a painting.
 - D. an obligation to provide a medical service.
 - E. an obligation to weave 'Habesha Kemis'.
11. Which of the following is **FALSE** about performance of a contract?
- A. When two or more persons hold themselves out to be creditors for a certain debt, a debtor may refuse to pay any of them without risking himself against consequences of non-performance unless the case is pending in court.
 - B. The Ethiopian Contract Law authorizes parties to use gold as a medium of exchange.
 - C. A seller may unilaterally make slight modification to the contract terms that provides about quality or quantity of fungible things to be delivered to the buyer.
 - D. In principle, payment made to incapable persons amounts to non-performance.
 - E. There is situation where payment to unauthorized agent validly releases the debtor from his obligation.

12. Which one of the following is a correct combination about contract law model?
- A. Consent Theory- cumulative of economic law and objective intention
 - B. Bargain Theory- substantive fairness
 - C. Efficiency Theory- Consideration
 - D. Will Theory – subjective expectation of a creditor
 - E. Reliance Theory- aggregate utility
13. Which one of the following is true about default notice?
- A. It should always be in writing.
 - B. It may contain grace period.
 - C. It is unnecessary to claim damage.
 - D. It is unnecessary in obligation not to do.
 - E. It is given by a debtor to his creditor.
14. Identify the **INCORRECT** statement among the following
- A. Some contracts that relate to immovable property may be made orally.
 - B. Even in case where written form is not mandatory, contract made in writing need to be attested by witnesses.
 - C. The effects of presumption of payment of certain debts after certain periods and the effects of period of limitation of action are usually the same regardless of less significant procedural differences.
 - D. Provisions of the Civil Code of Ethiopia dealing with effects of contract are generally complementary provisions that are applicable in the absence contractual terms.
 - E. In a contract of stipulation for the benefit of third parties, the contract is completed when an identified beneficiary accepts the benefit.
15. A surety-ship certifier is
- A. a person who guarantees the effectiveness of the indemnity claim of a guarantor.
 - B. a person demanding assurance by the debtor.
 - C. secondary guarantor.
 - D. joint creditor.
 - E. joint debtor.

16. Under the Commercial Code, transfer of shares from members to outsiders in private limited companies is
- A. prohibited by law.
 - B. subject to approval by unanimous consent of shareholders.
 - C. subject to approval by simple majority vote of shareholders.
 - D. made in writing, lest it shall be void.
 - E. not regulated.
17. Which of the following organs helps in managing the agency problem between the board of directors and the general meeting of shareholders?
- A. The general manager
 - B. The Auditors
 - C. The board secretary
 - D. The board chairperson
 - E. The government
18. Founders in share companies **CANNOT** be entitled to
- A. reimbursement of their expenses made during company formation.
 - B. payment of compensation for their services during company formation.
 - C. payment of salary for the duration of company formation.
 - D. dividends in respect to the shares they own in the company.
 - E. board member fee even if they serve in the board of directors.
19. One of the following is true about the liability of board of directors?
- A. Directors have no liability to creditors of the company; only the company is liable.
 - B. Directors can be liable to individual shareholders.
 - C. Only the company can enforce director liability after resolution of the general meeting.
 - D. Each director has proportional individual liability to creditors or company.
 - E. Directors can have no liability to shareholders of the company.
20. A general partnership under Ethiopian law is **NOT**
- A. a separate legal person from its members.
 - B. a commercial business organization.
 - C. jointly and severally liable with its members for partnership debts.
 - D. a personal association of persons.
 - E. established by a memorandum of association.

21. Which of the following reasons **CANNOT** result in dissolution of a private limited company?
- A. The death of a shareholder
 - B. The decision of the government
 - C. Expiry of the term for which the company was established
 - D. Serious disagreement between the shareholders
 - E. Loss of its entire capital
22. Which of the following laws applies on traders only?
- A. Commercial Registration and Business Licensing Proclamation
 - B. The Commercial Code of Ethiopia
 - C. The Civil Code of the Ethiopia
 - D. The Banking Business Proclamation No. 592/2008
 - E. Trade Competition and Consumer Protection Proclamation
23. In which of the following relationships the obligation to pay maintenance is **NOT** created pursuant to the Revised Family Code?
- A. Between spouses
 - B. To ascendants
 - C. To descendants
 - D. Between siblings
 - E. To uncles and aunts
24. Which of the following best expresses the rationale behind regulating family relationships?
- A. It is intended to interfere in the privacy of individuals.
 - B. It is aimed to avoid social problems and instability.
 - C. It is because family is the building block of society.
 - D. It is to protect the weak and ensure their dominance.
 - E. It is to continue the patriarchal way of society.
25. Which of the following is different from others?
- A. Income of the spouses
 - B. Succession or donations by one of the spouses
 - C. Income from personal property
 - D. Pension made during marriage
 - E. Property acquired during marriage by an onerous title

26. Under the Ethiopian Law of Successions, the unworthiness of a person to succeed is **NOT** related to _____
- A. intentional killing of the deceased.
 - B. intentional killing of an ascendant of the deceased.
 - C. his/her survival on the day of the death of the deceased.
 - D. intentional killing of a descendant of the deceased.
 - E. tampering with the decision of the deceased to revoke his/her will.
27. At what age does a person attain testamentary capacity under the Ethiopian Law of Successions?
- A. 14
 - B. 16
 - C. 18
 - D. 21
 - E. 23
28. Which one of the following is **NOT** true about public will?
- A. It shall be of no effect unless it is dated.
 - B. It shall be of no effect unless it is signed by the testator and the witnesses forthwith.
 - C. It shall be of no effect unless it is attended by four witnesses.
 - D. It can be valid notwithstanding that it is written by a third party.
 - E. It shall be of no effect unless it is read in the presence of the testator and witnesses.
29. The law of possession in good faith as embodied in the Civil Code of Ethiopia applies generally to _____
- A. a special movable.
 - B. an immovable.
 - C. a stolen thing.
 - D. any ordinary movable.
 - E. currency and securities to bearer.
30. The approach to the determination of compensation adopted in Ethiopia's current expropriation law with regard to property on land to be expropriated is
- A. replacement cost of the property anew.
 - B. prevailing market value of the property.
 - C. fair market value of the property.
 - D. current value of the property less depreciation.
 - E. adequate amount of compensation.

SECTION II: MATCHING ITEMS (10 MARKS)

MATCH THE ITEMS UNDER 'A' WITH THOSE UNDER 'B'

A

1. Judicial declaration of paternity
2. Opposition to marriage
3. Prohibitory impediment
4. Absolute impediment
5. Compulsory arbitration of spousal
6. Legal presumption of paternity
7. Adoption
8. Duty of fidelity
9. Irregular Union
10. Legal dissolution of marriage

B

- A. Period of widowhood
- B. *Pacta Sunt Servanda*
- C. Continuous sexual intercourse
- D. Disowning
- E. Personal effect
- F. Relation by consanguinity
- G. Public prosecutor
- H. The 1960 Civil Code
- I. Absence
- J. De facto relationship
- K. Common property
- L. Personal property
- M. Customary marriage

SECTION III: SHORT ANSWERS (10 MARKS)

ANSWER THE FOLLOWING QUESTIONS IN NOT MORE THAN 4 LINES.

- 3.1. What are the three alternative ways of contractual extinction of obligation? (3 MARKS)
- 3.2. What is the legal maxim that conveys a meaning that a person is bound by his own words? (3 MARKS)
- 3.3. Payment made to unqualified person would validly release the debtor from his obligation provided the debtor proves that he made payment in good faith to a person who appears without doubt to be the creditor. Who is this person? (4 MARKS)

SECTION IV: ESSAYS (20 MARKS)

WRITE SHORT ESSAYS FOR THE FOLLOWING QUESTIONS IN NOT MORE THAN 10 LINES.

- 4.1. 'The Ethiopian Law of Successions was promulgated some fifty years ago as part of the 1960 Civil Code of the Empire of Ethiopia. It is, therefore, only a small exaggeration to say that some of its provisions are virtually obsolete. As such, they require an arduous task of tweaking to make them relevant to the present socio-economic conditions and constitutional order.' Do you agree with this assertion? Why/Why not? Give illustrations to support your position. (10 MARKS)
- 4.2. Discuss two rules of minority shareholder protection under the Commercial Code of Ethiopia. (10 MARKS)

SECTION V: HYPOTHETICAL CASES (30 MARKS)

READ THE FOLLOWING HYPOTHETICAL CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

5.1. HYPOTHETICAL CASE I (15 MARKS)

After having examined the charge and the defense presented in the criminal proceeding, the Federal High Court convicted Ato Bedilu for the killing of Ato Yigermal and sentenced the former to 18 years imprisonment in 2008. Ato Bedilu had to serve 12 years of imprisonment to have been released on parole. Immediately after his release, Ato Yigermal - who had allegedly been murdered - reappeared. The Office of Federal Police confirmed the reappearance of the alleged victim of homicide. Due to the wrongful conviction and sentence, Ato Bedilu lost his liberty for 12 years, reputation, moral fortitude, job, property, family, and friends.

- 5.1.1. Knowing that you are the best lawyer, Ato Bedilu approaches you to seek legal advice for his loss. What would be your best legal advice? (8 MARKS)
- 5.1.2. Assume that Ato Bedilu has brought a civil action against judges who wrongfully convicted him. What would be the preliminary defense of the defendants? (7 MARKS)

5.2. HYPOTHETICAL CASE II (15 MARKS)

W/ro K has concluded a contract of lease with Ato L relating to her tract of farm land for a period of 2 years. The lease contract has been made in compliance with the requirements of the relevant laws. During the time of the lease, Ato L has entered into a contract orally with M Construction Company with the view to allowing the latter (the Company) to remove 3,000 cubic meters of topsoil from the leased plot without the permission of the lessor (W/ro K). The Company has removed the said quantity of topsoil from W/ro K's plot and piled it up for future consumption in one of its construction sites. An expert has estimated that the cost to level the excavated site is 20,000 Birr. W/ro K has filed a suit in a court of law.

- 5.2.1. In whose favor should the court decide the case? Why? (15 MARKS)

**NATIONAL EDUCATIONAL ASSESSMENT AND EXAMINATIONS
AGENCY (NEAEA)**

**NATIONAL EXIT EXAMINATION FOR
LL.B PROGRAMME STUDENTS OF ETHIOPIAN LAW SCHOOLS**

ACADEMIC YEAR 2020/ 2021

05 AUGUST 2021

TIME ALLOWED: 3:00 HOURS

PART III: PROCEDURAL LAWS AND SKILLS

INSTRUCTIONS:

- THIS IS A CLOSED BOOK EXAM FOR ALL MATERIALS EXCEPT **CLEAN COPIES OF**
 - a) THE CIVIL PROCEDURE CODE,
 - b) THE CRIMINAL PROCEDURE CODE,
 - c) THE CRIMINAL CODE,
 - d) THE FEDERAL COURTS ESTABLISHMENT PROCLAMATION AND
 - e) CORRUPTION CRIME PROCLAMATIONS (SUBSTANTIVE AND PROCEDURAL) WHICH CANNOT BE LENT TO NOR BORROWED FROM OTHER STUDENTS.
- THE EXAM HAS FIVE SECTIONS. THE GRADES ALLOTTED FOR EACH SECTION ARE INDICATED BESIDE THE TITLE OF THE SECTION.
- WHENEVER APPROPRIATE, SUPPORT YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS.
- YOU ARE EXPECTED TO ALLOCATE YOUR TIME BASED ON THE MARKS ALLOTTED PER QUESTION.
- WRITE YOUR ANSWERS IN THE ANSWER SHEET PROVIDED.
- SWITCH OFF YOUR MOBILE PHONES.

PLEASE DO NOT TURN THIS PAGE UNTIL YOU ARE TOLD TO DO SO!

SECTION I: MULTIPLE CHOICE QUESTIONS (30 marks)
CHOOSE THE BEST ANSWER AND WRITE THE LETTER OF YOUR CHOICE ON A SEPARATE ANSWER SHEET.

1. Which one of the following statements is true about issues?
 - A. Whenever there is a civil suit, it is mandatory for the court to frame an issue or issues.
 - B. There might be circumstances where a decision may be made by w without framing an issue.
 - C. A civil suit is expected to contain either a legal issue or a factual issue.
 - D. Issues are framed only by the judge under all circumstances.
 - E. If a case contains both legal and factual issues, the judge is expected to resolve the factual issue first and then the legal issue.
2. In Ethiopia, a lawyer is expected to consult one of the following legal instruments to clearly understand the material jurisdiction of the federal courts as far as civil cases are concerned. Which one?
 - A. The FDRE Constitution
 - B. The Civil Procedure Code
 - C. The Federal Courts Proclamation
 - D. Regional court establishment proclamations
 - E. The decisions of the Cassation Division of the Federal Supreme Court
3. Which one of the following may be a negation to both material and local jurisdiction of courts?
 - A. Pendency
 - B. Consolidation of cases
 - C. Priority
 - D. Change of venue
 - E. Joinder of parties
4. Which one of the following is a mechanism of review of judgment by the court of rendition?
 - A. Opposition
 - B. Interpleader
 - C. Impleader
 - D. Third party defendant
 - E. Intervention

5. Which one of the following statements is true under the Ethiopian law of Civil Procedure?
- A. Absence of the defendant at the time of hearing without any sufficient cause entails dismissal of the suit.
 - B. Absence of the plaintiff at the time of hearing without any sufficient cause entails ex parte proceeding.
 - C. Absence of the plaintiff at the time of hearing entails no legal consequence.
 - D. Absence of an appellant at the time of hearing without good cause entails dismissal of the appeal.
 - E. Absence of the plaintiff at the time of hearing entails criminal punishment against the plaintiff.
6. Under the Ethiopian legal system, an individual person can be a plaintiff in civil suit where:
- A. he believes that the interest of his friend or relative or national interest is affected by the action or inaction of a certain individual or a legal person.
 - B. he shows to the court that he has a vested interest in the suit and that his suit has a cause of action.
 - C. he is an Ethiopian national or a foreign national of Ethiopian origin.
 - D. he has the capacity to pay court fees under all situations.
 - E. attains majority age despite the presence of his guardian or tutor.
7. Which one of the following statements is true about jurisdiction of courts in Ethiopia?
- A. The judicial jurisdiction of courts is defined by the FDRE Constitution.
 - B. Judicial jurisdiction of courts is defined by the Civil Procedure Code of Ethiopia.
 - C. There is no law that defines the judicial jurisdiction of Ethiopian courts.
 - D. At the federal level, material and local jurisdiction of courts is determined by the provisions of the Civil Procedure Code.
 - E. Determining jurisdiction of courts is left to the discretionary power of the Federal Supreme Court.

8. An appellate proceeding does not normally involve:
- A. framing of issues
 - B. hearing
 - C. examination-in-chief of witnesses
 - D. giving a ruling on any preliminary objection
 - E. judgment writing
9. Which one of the following statements is true about joinder of parties under the Ethiopian Civil Procedure Code?
- A. The requirements for joinder of plaintiffs and joinder of defendants are one and the same.
 - B. The requirements for joinder of plaintiffs are more stringent than the requirements for the joinder of defendants.
 - C. A plaintiff is allowed to join many defendants in one suit without any limit so long as he has a cause of action against all the defendants.
 - D. The Civil Procedure Code has expressly provided that a person can be joined as a plaintiff even against his will by the order of the court so long as such plaintiff is an indispensable party.
 - E. No individual can be joined as a co-defendant by the request of the defendant as long as the plaintiff does not have any claim against such individual.
10. The Cassation Division of the Federal Supreme Court entertains civil cases where:
- A. one of the parties is a government administrative agency or a public enterprise.
 - B. the case contains both factual error and error of law.
 - C. the case involves only issues of private international law.
 - D. it is proved that the lower courts decided the case by misapplying facts.
 - E. the decision is final and contains fundamental error of law.
11. Which of the following is **NOT** a factor of relevancy of facts with facts in issue in criminal case?
- A. Character
 - B. Motive
 - C. Spontaneous declaration
 - D. State of things
 - E. Intimidation

12. Which of the following shows relevancy of similar occurrences?
- A. If a person caught while stealing is suspected for fraudulent act.
 - B. If a person caught in robbery is suspected for forgery.
 - C. If a person caught in cheating is suspected for causing physical injury on a person.
 - D. If a person caught in robbery is suspected for the same offence again.
 - E. There is no relevance of similar occurrences with facts in issue.
13. Which of the following is correct about relevancy?
- A. It refers to facts which have high level of probative value.
 - B. It refers to facts having the potential to prove or disprove facts in issue.
 - C. It refers to facts to be framed by a court.
 - D. It is a fact which is claimed by one party and denied by the other party.
 - E. It refers to the relationship between charge and judgment.
14. Which of the following does **NOT** describe the basics of conflict of laws?
- A. It provides procedures to assist a judge in public litigation.
 - B. It helps judges to select a court to which a case is closely connected.
 - C. It helps judges to select a law to which a case is closely connected.
 - D. It is applied in resolving a legal dispute which has a foreign element.
 - E. It comprises rules of enforcement of foreign judgments.
15. Choose the alternative which does **NOT** explain conflict of laws objective.
- A. Choice-of-law process
 - B. Questions of material jurisdiction
 - C. Recognition of foreign judgments
 - D. Enforcement of foreign judgments
 - E. Recognition of arbitral awards

16. Which one of the following principles is **NOT** included in R.A. Lefflar's list of choice influencing considerations in solving conflict problem?
- A. Predictability of results
 - B. Maintenance of inter-state and international order
 - C. Duplication of the judicial task
 - D. Advancement of the forum's governmental interest
 - E. The application of the better rule of law
17. Which one of the following does **NOT** explain the substantive law approach of choice-of-law process?
- A. It is a non-policy-oriented choice-of-law approach.
 - B. It is characterized rules of decision directly governing multistate transactions.
 - C. The purpose is choosing the law that promotes the result.
 - D. It is result-selective or result-oriented approach.
 - E. This system is also termed as the teleological approach.
18. Which one of the following is **FALSE** about granting permission to execute a foreign judgment in Ethiopia?
- A. The execution of Ethiopian judgments is allowed in the country in which the judgment to be executed was given.
 - B. The judgment was given by a court duly established and constituted.
 - C. The judgment-creditor is given the opportunity to appear and present his defence.
 - D. The judgment to be executed is final and enforceable.
 - E. Execution is not contrary to public order or morals.
19. One of the following is **NOT CORRECT** about foreign arbitral awards to be enforced in Ethiopia.
- A. Reciprocity is not sought to enforce foreign arbitral awards.
 - B. The award has been made following a regular arbitration agreement.
 - C. The parties have had equal rights in appointing the arbitrators.
 - D. The arbitration tribunal was regularly constituted.
 - E. The award must be enforceable on the condition laid down in Ethiopian laws.

20. Among the following alternatives, one is **NOT** included under rules governing conveyance of rights in an immovable.
- A. Rules governing transfer of choses in possession.
 - B. Capacity of the party who conveys to make an effective conveyance.
 - C. The capacity of the party to whom the conveyance is made.
 - D. The formal validity of the conveyance.
 - E. The nature of the interest transferred.
21. In principle, in Ethiopia, how does the Law of Criminal Procedure relate to substantive criminal law?
- A. It provides for a list of conducts to which the substantive criminal law attaches penalty.
 - B. It recognizes penalties for conducts which the substantive criminal law prohibits.
 - C. It presents rules for prosecuting conducts criminalized by substantive criminal law.
 - D. It recognizes the general principles on which the system of criminal law is built.
 - E. It contains rules which can be used to fill the gaps in the substantive criminal law.
22. Prosecution is one of the processes that we observe in criminal justice systems. That being the case, which one of the following falls within the scope of this process?
- A. Criminalizing an undesirable conduct.
 - B. Imposing sentences for crimes committed.
 - C. Giving pardons to convicted criminals.
 - D. Providing amnesty to group criminals.
 - E. Discontinuing criminal charge against suspects.
23. If information about the commission of a crime is communicated to the police, in accordance with the relevant provisions of the Criminal Procedure Code, what should the police do next?
- A. Pass on the information to prosecution office.
 - B. Frame a criminal charge based on the information received.
 - C. Commence investigating the matter.
 - D. Wait for more information to come in.
 - E. Seek authorization from prosecution to start investigation.

24. In criminal justice system, one of the following chains of activities can best describe the responsibilities of the police.
- A. Conducting investigation-starting prosecution-undertaking witness examination.
 - B. Undertaking trial-conducting investigation-producing evidence during trial.
 - C. Initiating prosecution-receiving information-examining witness at trial.
 - D. Receiving information-conducting investigation-reporting to prosecution.
 - E. Receiving information-conducting investigation-deciding to prosecute.
25. Which one of the following rights can be regarded as procedural due process right?
- A. Right to get pardon.
 - B. Right to present defense evidence.
 - C. Right to get suspension of execution of penalty.
 - D. Right to seek trial by court of one's choice.
 - E. Right to delay trial.
26. Currently, which one of the following crimes is entertained by regional courts through delegation?
- A. Crimes involving negotiable instruments
 - B. Crimes involving negligent homicide
 - C. Crimes against sexual liberty such as rape
 - D. Crimes against the institution of family
 - E. Crimes against property of individuals
27. In light of the dictates of the principle of presumption of innocence, which one of the following sentences is true in the Ethiopian context?
- A. The accused person does not have to present defence evidence until the prosecution makes a case against him.
 - B. Someone who is charged for committing a crime will immediately start defending himself.
 - C. Both the prosecution and the accused will present their defence evidence simultaneously.
 - D. There is an exception to the rule that everyone is presumed innocent until proved guilty.
 - E. Once the presumption of innocence is destroyed by the prosecution, there is no chance for it to be restored.

28. Which one of the following can be a good reason to adjourn hearing?
- A. Failure of the accused's lawyer to appear for no good reason.
 - B. Non-appearance of prosecution for no good reason.
 - C. Failure of prosecution witnesses to appear.
 - D. Minor alterations to the charge.
 - E. The need to comfort the accused.
29. During trial, which one of the following is the duty of the prosecution?
- A. Opening his case, calling witnesses, and conducting cross-examination of witnesses.
 - B. Opening his case, calling witnesses, and conducting examination-in-chief and cross-examination of witnesses.
 - C. Opening his case, calling witnesses, and conducting cross-examination and re-examination of witnesses.
 - D. Opening his case, calling witnesses, and conducting re-examination of witnesses after their examination-in-chief by the accused.
 - E. Behaving in a manner that is impartial and objective throughout the trial.
30. If the accused person declares that he has completed introducing his defence witnesses and he has no written evidence, what will the court order the parties to do next?
- A. To submit their opinions on how the trial was conducted, with their complaints, if any.
 - B. To submit their final addresses on questions of law and fact.
 - C. To submit their sentencing opinions.
 - D. To submit any objection they may have against the charges.
 - E. To submit their request about introduction of additional evidence, if any.

SECTION II: MATCHING (10 marks)

MATCH EACH ITEM UNDER COLUMN "A" WITH ITS BEST CORRESPONDING ITEM UNDER COLUMN "B".

Column A

1. Part of circumstantial Evidence
2. Hearsay evidence
3. Right against self-incrimination
4. Common law legal system
5. Best evidence rule
6. Competence of witnesses
7. Admission
8. Higher degree of proof
9. Examination-in-chief
10. Self-defence

Column B

- A. Proof beyond reasonable doubt
- B. Justification for absence of criminal liability
- C. Applies inquisitorial litigation
- D. Concomitant evidence
- E. Leading question is not allowed
- F. Constitutional right of the accused
- G. Prefer documentary evidence
- H. Original documents
- I. Uses adversary litigation
- J. Ability to comprehend facts
- K. Absence of facts in issue
- L. Totally ignore documentary evidence
- M. Indirect fact

SECTION III: SHORT ANSWERS (10 marks)

GIVE A SHORT ANSWER TO THE FOLLOWING QUESTIONS.

- 3.1. Distinguish between general and special jurisdiction of courts in conflict of laws. **(3 marks)**
- 3.2. Distinguish between facts in issue and relevant facts **(3 marks)**
- 3.3. What is the probative value status of expert evidence in Ethiopia in criminal cases? **(4 marks)**

SECTION IV: ESSAY TYPE QUESTIONS (20 marks)

WRITE SHORT ESSAY TO THE FOLLOWING QUESTIONS.

- 4.1. Write a short essay of not more than 15 (fifteen lines) explaining the rights of accused persons in Ethiopia. **(10 marks)**.
- 4.2. "Permission to execute a foreign judgment shall not be granted unless the execution of Ethiopian judgments is allowed in the country in which the judgment to be executed was given." Explain this statement in Ethiopian execution of foreign judgments rules and policy implications. **(10 marks)**.

SECTION V: HYPOTHETICAL CASE PROBLEMS (30 marks)

READ THE FOLLOWING TWO HYPOTHETICAL CASES AND ANSWER THE QUESTIONS THAT FOLLOW. SUPPORT YOUR ANALYSIS WITH THE RELEVANT PROVISIONS OF THE CIVIL PROCEDURE CODE.

5.1. Hypothetical Case Problem 1 (15 marks)

Mr. X sued Mr. Y alleging that the latter intentionally destroyed his property. The lawyer of Mr. X included the name of the plaintiff, Mr. X, in the witnesses list so that Mr. X would give his testimony in support of his claim. Mr. X appeared as a witness and took an oath as any other witness. Then, the lawyer of Mr. X started to put examination-in-chief questions to the plaintiff as any other witness. However, the judge did not allow the lawyer to do so stating that questions in examination-in-chief could not be forwarded to the plaintiff by the lawyer. The judge said that questions should rather be forwarded to the plaintiff witness by the judge himself.

5.1.1 State your legal opinion on whether the judge has committed procedural irregularity. Why/why not? (15 marks)

5.2 Hypothetical Case Problem 2 (15 marks)

Mr. D lodged an appeal to the Federal High Court against a decision of the Federal First Instance Court. The respondent in this appeal (Mr. W) lodged a cross-objection against some parts of the decision of the Federal First Instance Court although he (Mr. W) was satisfied with most of the reliefs the court granted him. At the date on which the court decided to hear both appeals, Mr. W did not appear before the appellate court thinking that his absence on that date did not make any difference on the outcome of his case.

5.2.1 Assuming that you were the judge, what action would you take before you resort to examining the merits of the appeals? (15 marks)

THE END

**NATIONAL EDUCATIONAL ASSESSMENT AND
EXAMINATIONS AGENCY**

**NATIONAL EXIT EXAMINATION FOR LL.B PROGRAMME
STUDENTS OF ETHIOPIAN LAW SCHOOLS
ACADEMIC YEAR 2020/2021**

06 AUGUST 2021

TIME ALLOWED: 2:45 HOURS

PART IV: MISCELLANEOUS LAW COURSES

GENERAL INSTRUCTIONS

1. THE EXAM HAS FIVE SECTIONS. ATTEMPT ALL QUESTIONS ON THE BASES OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
 2. IS A CLOESD BOOK EXAMINATION.
 3. SUPPORT YOUR ARGUMENTS WITH PERTINENTS LEGAL PROVISIONS WHENEVER APPROPRIATE.
 4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM PAPER.
- YOU MAY ASSUME FACTS WHERE NECESSARY.
WRITE LEGIBLY.
DO NOT BRING YOUR MOBILE PHONE IN TO THE EXAM HALL.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.

SECTION I: MULTIPLE CHOICE QUESTIONS (25 marks)

CHOOSE THE BEST ANSWER FROM THE GIVEN CHOICES AND WRITE THE LETTER OF YOUR CHOICE ON THE ANSWER SHEET PROVIDED.

1. Which one of the following is **not** among the requirements regarding contents of a contract of employment?
 - A. Clarity of rights and obligations of both the employer and the employee.
 - B. A clear term in the contract that the employment may not be used for performance of unlawful acts.
 - C. Inclusion of clauses regarding wages such as rate and method of calculation.
 - D. Inclusion of a clause relating to the place of work.
 - E. There are no requirements concerning contents of a contract of work under Ethiopian labor law.

2. Which one of the following is **not** correct about how a judge comes to be able to make moral decisions in certain cases?
 - A. By understanding his/her motives.
 - B. By understanding the consequences of his/her actions.
 - C. By being deterred and frightened of the penalties incurred on him/her for his action.
 - D. By understanding the means adopted to execute action.
 - E. By appreciating the actions that justifies the result.

3. One of the following statements best describes the major concerns of professional ethics.
 - A. It is concerned with the study of ethical dilemmas in professions by application of moral theory.
 - B. It is concerned with the study of unique moral obligations only created by special social roles.
 - C. It is concerned with the practice and consultancy of ethics by a trained professional ethicist.
 - D. It is concerned with the ethical challenges of a professional lifestyle.
 - E. It is concerned with teaching how ordinary human beings should identify rights from wrongs.

4. Which of the following statement is **incorrect**?
- A. Ethical dilemmas arise when it is thought that serious good and bad are bound together in the same activity.
 - B. Morality uses the instrument of coercion to oblige its subjects.
 - C. Ethical behavior is dependent on the conditions and circumstances under which an action or event takes place.
 - D. Codes of conduct form a part of ethical training in every profession.
 - E. The moral basis of ethical rules may vary from one profession to another.
5. Which of the following statements is most suitable to describe duty ethics?
- A. The basic notion is that the right or wrong consideration is what makes the act right or wrong, other things being equal.
 - B. The basic notion is that an adherence to the codes prescribed under the duty one is employed in makes for the right action.
 - C. The basic notion is that right and wrong are relative to time and circumstance.
 - D. The basic notion is that right and wrong are determined by humans according to their subjective conscience.
 - E. The underlying notion is that right and wrong are absolutely and universally determined for eternity.
6. Which of the following elements is affected most directly and immediately in a case of conflict of interest by a presiding judge?
- A. The personal reputation of the judge.
 - B. The trust that the public holds in the judicial office.
 - C. The legitimacy of the judicial office.
 - D. The supremacy of a constitution under which the judge is supposed of function.
 - E. Respect for the rule of law.

7. Which of the following is **not** the function of a professional code of ethics?
- A. It can express a shared commitment on the part of members of a professional society to strive to satisfy certain ethical standards and principles.
 - B. It can help foster an environment in which ethical behavior is the norm.
 - C. It can serve as a guide or reminder in specific circumstances.
 - D. It is a code of conduct enacted by professional organizations to self-regulate the behaviors of their members.
 - E. It can serve as a common standard of code of conduct despite differences in professional disciplines.
8. Which of the following best exhibits an advocate's duty to give the court the respect it deserves?
- A. An advocate constantly appearing in court on time.
 - B. An advocate obeying court orders and procedures.
 - C. An advocate appearing in court dressed in business clothing.
 - D. An advocate addressing the court as 'Your Honor' at all times.
 - E. An advocate who stands up when the judge presides over the trial proceedings.
9. Which of the following descriptions is **not** correct about the ethical theory of non-consequentialism?
- A. The theory of non-consequentialism is an evaluation of an ideal type the way world ought to be.
 - B. The theory of non-consequentialism is an evaluation of outcomes or states the way world might be.
 - C. The theory of non-consequentialism is an evaluation of motives of the individual acting.
 - D. The theory of non-consequentialism is an evaluation of the means that an individual acts through.
 - E. The theory of non-consequentialism is an evaluation of the means that justifies the acts of an individual.

13. The Amer...
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10. Which one of the following schools of ethics describes the view that there is no general moral principles and that moral disputes, therefore, **cannot** be resolved?
- A. Ethical relativism
 - B. Ethical nihilism
 - C. Ethical skepticism
 - D. Ethical transcendence
 - E. Ethical imperatives
11. Which one of the following is **not** correct about termination of tenure of federal judges under the Federal Judicial Administration Proclamation 1233 of 2021?
- A. A judge's tenure shall terminate at the mandatory retirement age.
 - B. A judge's tenure shall terminate if he/she suffers from serious illness which may affects his/her judicial works.
 - C. A judge's tenure shall terminate when he/she manifests gross incompetence as ascertained by the president of the court.
 - D. A judge's tenure shall terminate for breach of discipline ascertained by the Judicial Administration Council.
 - E. A judge's tenure shall terminate when the judge resigns from the judicial work.
12. Which of the following schools of thought is associated with the 'separation thesis'?
- A. Natural Law
 - B. Positive Law
 - C. Realism
 - D. Stoicism
 - E. Historical

13. The American conception of legal realism may **not** be represented by one of the following characteristics.
- A. The conception of law as an end in itself.
 - B. The conception of law *in flux*, of moving law, and of judicial creation of law.
 - C. The conception of society in flux.
 - D. Distrust of traditional rules and concepts insofar as they purport to describe what either courts or people are actually doing.
 - E. An insistence on evaluation of any part of the law in terms of its effect.
14. Which of the following is correct about Austin's conception of the law?
- A. Law is defined as divine revelation.
 - B. Law is made by an authority to be imposed on the people for obedience.
 - C. Positive law is intermingled with positive morality.
 - D. Law is discoverable by cosmic reason.
 - E. Law is made through societal consensus for it to be binding.
15. According to Lon F. Fuller, the basic function of law is to
- A. establish the minimal standard below which no one can depart from.
 - B. prescribe for people to reach the highest possible level of achievement in their engagement.
 - C. prescribe for people to become inherently benevolent.
 - D. provide the highest standard of conduct that anyone should meet.
 - E. establish standard rules that will govern the salvation of the people.
16. Which of the following jurists is associated with the notion of law as enshrined in the spirit of the people?
- A. Eugen Ehrlich
 - B. Henry Maine
 - C. Von Savigny
 - D. Roscoe Pound
 - E. H.L.A. Hart

17. Which of the following statements is correct about Hobbesian, and Locke's State of Nature?

- A. Both Locke and Hobbes envisaged the absence of government making the lives of human beings an absolute joy.
- B. Both Hobbes and Locke believed in the inherent goodness of human beings.
- C. Both Locke and Hobbes believed in the necessity of establishing government through coercive power.
- D. Both Locke and Hobbes believed in the necessity of establishing government through social contract.
- E. Both Hobbes and Locke developed their thesis after passing through same experiences.

18. Which of the following statement is **false**?

- A. The adherent of natural law believes that the principles of natural law are higher than the law made by man.
- B. Natural law maintains that as man is part of nature with natural ends, a law that runs counter to the natural ends of man is invalid.
- C. Natural law holds that as peace assists the ends of human beings, human beings should strive to maintain peace.
- D. The principles of natural law are constant since human beings' natural ends are the same for all humankind, and remain the same for all time.
- E. Natural law holds that the principles of natural law exist only in enactments.

19. Which of the following legal and political philosophers is **not** credited for the development of first generation (Civil and Political) rights?

- A. Thomas Hobbes
- B. John Locke
- C. Jean-Jacques Rousseau
- D. Aurelius Augustine
- E. Stewart Mills

20. One of the following is **incorrect** about the distinction between law and morality.
- A. Law is developed through non-deliberative action whereas morals develop through deliberative process.
 - B. Laws take the external acts of a person into consideration whereas morals look to factors like inner determination and direction of the will.
 - C. Law is enforced by way of external coercion whereas morals appeal to the free will of an individual.
 - D. Law is concerned with the individual liberty of a person whereas morality deals with the collective ideas of what is good and bad.
 - E. Law regulates the conduct of a person as long as one is a member of a specific community whereas morals guide the conduct of a person even when one is all alone.
21. Which of the following statements is valid about violence against women?
- A. It is clearly defined and regulated under the Convention on Elimination of all forms of Discrimination against Women.
 - B. The precise and detailed definition of violence against women is provided under the Declaration on the Elimination of Violence against Women.
 - C. Violence against women is the result of random, individual acts of misconduct, rather than deeply rooted in structural inequality between women and men.
 - D. There is no universally adopted definition of violence against women and it is the phenomena of developing countries.
 - E. It enhances the rights and fundamental freedoms of women under general international law or under human rights conventions.
22. Which of the following elements of the state's obligations with respect to the right to education involves the right to choose the type of education received, and the right to establish, maintain, manage and control private educational establishments?
- A. Availability
 - B. Accessibility
 - C. Acceptability
 - D. Adaptability
 - E. Associability

23. Which of the following statements is **not** correct about gender equality?
- A. Gender equality refers to the equal rights, responsibilities and opportunities of women and men and girls and boys to access and control social goods and resources.
 - B. Gender equality implies that the interests, needs and priorities of both women and men are taken into consideration.
 - C. Gender equality is not an issue referring to women only but it should concern and fully engage men as well as women.
 - D. Gender equality is seen both as a human rights issue and as a precondition for, and indicator of, sustainable people-centred development.
 - E. Gender equality refers to the number of women as opposed to the number of men employed by agencies in various fields and sectors.
24. What type of feminist theory holds that gender equality can be realized only by eliminating the cultural notion of gender itself?
- A. Liberal feminism
 - B. Conservative feminism
 - C. Radical feminism
 - D. Socialist feminism
 - E. Conventional feminism
25. Women's rights are internationally protected effectively primarily through _____.
- A. Prohibiting discrimination
 - B. Ensuring women's rights against gender-based violence
 - C. Facilitating women's rights movement to be effective
 - D. Advancing the principle of equality in the human rights conventions
 - E. Ratifying human rights treaties

SECTION II. MATCHING QUESTIONS (10 marks)

SELECT A TERM/PHRASE FROM COLUMN 'B' THAT BEST MATCHES WITH A TERM/PHRASE UNDER COLUMN 'A' AND WRITE THE LETTER OF YOUR CHOICE ON THE ANSWER SHEET.

A

1. Apprenticeship
2. Battered women syndrome
3. Male employee
4. Collective bargaining
5. Fiduciary duty
6. Teheran Conference
7. Oliver W. Holmes
8. Labor courts
9. Managerial employee
10. Familiarization of boys and girls with certain objects

B

- A. Paternity leave
- B. Law as prophesy of the court
- C. Dominance theory
- D. Domestic violence
- E. Excluded from the Labor Proclamation
- F. Individual labor disputes
- G. Written agreement
- H. Good faith
- I. Obligation to act in the best interests of the client
- J. Women's rights are human rights

SECTION III: SHORT ANSWER QUESTIONS (15 MARKS)

PREPARE A SHORT NOTE ON EACH OF THE THREE QUESTIONS PROVIDED BELOW.

- 3.1. Write a short note on the need to maintain the dignity of the court and the legal process. (5 marks)
- 3.2. What is the difference between libertarian and utilitarian approach to equality? (5 marks)
- 3.3. Describe the phrase 'harmful traditional practices.' (5 marks)

SECTION IV: ESSAY-TYPE QUESTIONS (25 marks)

ANSWER THE FOLLOWING TWO QUESTIONS. YOUR ANSWERS ARE EXPECTED TO BE ANALYTIC, CRITICAL AND COMPREHENSIVE.

- 4.1. John Rawls, in his book entitled "Theory of Justice" (1972) provided one of the most complete argument for the theory of justice. Write a brief essay on John Rawls Theory of Justice. (12.5 marks)
- 4.2. Assume that the 'Nation of Peace' is a newly formed stated in Africa. The National Assembly of the Nation of Peace has ratified the Convection on the Elimination of All Forms of Discrimination against Women to combat systemic and widespread nature of domestic violence against women in the country. Following this, the Government of the Nation of Peace has decided to enact legislation, which is specifically dedicated to combat domestic violence and to give effect to the Convention it has just ratified. Write a brief memo which outlines key features of domestic violence legislation the Government of the Nation of Peace is planning to adopt. (12.5 marks)

SECTION V: HYPOTHETICAL CASE QUESTIONS (25 marks)

ANSWER THE FOLLOWING THREE HYPOTHETICAL CASES. YOUR ANSWER SHOULD BE BASED ON REASON AND AUTHORITY.

5.1. HYPOTHETICAL CASE I (12.5 marks)

Mrs. E who is a representative of a Federation of Trade Unions approaches you explaining working conditions of employees in some newly established industrial parks (IPs) in Ethiopia. With sadness, she narrates particularly of terrible conditions of work to employees in a certain industrial park (TIP, being the Park's acronym), which she and colleagues consider hopeless as far as working conditions of employees are concerned, with inadequate wages, with hazardous to health environment and so on. When you wanted to inquire further about the TIP, Mrs. E politely informs you that TIP was not the reason she came to you. Rather, with excitement, Mrs. E shifts her story to another industrial park (namely, EIP), which, she said has been remarkable in terms of profitability and at the same time respecting rights and livelihood of its employees, providing living wages, sufficient safety equipment, and so on. When you get confused as to what the labor matters are all about on the face of this remarkable IP, Mrs. E informs you that this particular EIP does not allow any organization of labor and any organized action, partly claiming that it has done more than enough and there is nothing to organize about. Assuming you are practicing law, specializing in labor matters as well as an activist on employment law issues in Ethiopia, please write Mrs. E a memo on the possibility of organized action at the EIP?

5.2. HYPOTHETICAL CASE II (12.5 marks)

Mrs. X was appointed by the Federal Attorney General of Ethiopia to represent Mr. F, who was accused of killing his own wife for aggravated homicide, as a *pro bono publico* service. After reading the contents of criminal charges brought against Mr. F, Mrs. X has become very emotional knowing that Mr. F's wife was murdered in a way that is an affront to her religious and moral values. In the list of prosecutors' evidence Mrs. X also discovered that Mr. F had a criminal record for raping his office secretary at workplace. Assume Mrs. X seeks to decline the appointment to represent Mr. F based on her religious and moral values. Do you think it is ethical for Mrs. X to decline representing Mr. F? Why or why not?